

THE NOTARIES ORDINANCE, 1961
(XIX of 1961)

CONTENTS

1. Short title, extent and commencement
2. Definitions
3. Power to appoint notaries
4. Registers
5. Entry of names in the Register and issue or renewal of certificates of practice
6. Annual publication of lists of notaries
7. Seal of notaries
8. Functions of notaries
9. Bar of practice without certificate
10. Removal of names from Register
11. Construction of references to notaries public in other laws
12. Penalty for falsely representing to be a notary, etc.
13. Cognizance of offences
14. [Omitted]
15. Power to make rules
16. Saving of Act XXVI of 1881
- 16A. [Omitted]

TEXT

THE NOTARIES ORDINANCE, 1961 (XIX of 1961)

[14th June, 1961]

An Ordinance

to provide for and to regulate the profession of notaries in ¹[the Punjab]

WHEREAS it is expedient to provide for and to regulate the profession of notaries in ²[the Punjab];

NOW, THEREFORE, in pursuance of the Proclamation of the seventh day of October, 1958, and in exercise of all powers enabling him in that behalf the President is pleased to make and promulgate the following Ordinance:—

1. Short title, extent and commencement.— (1) This Ordinance may be called the Notaries Ordinance, 1961.

(2) It extends to the whole of ³[the Punjab].

⁴[(3) It shall come into force at once.]

2. Definitions.— In this Ordinance, unless the context otherwise requires,—

⁵[(aa) "Government" means Government of the Punjab;]

(a) "instrument" includes every document by which any right or liability is, or purports to be, created, transferred, modified, limited, extended, suspended, extinguished or recorded;

⁶[(b) "Legal practitioner" means a legal practitioner as defined in the Legal Practitioners and Bar Councils Act, 1973 (XXXV of 1973);]

(c) "notary" means a person appointed as such under this Ordinance:

⁷[* * * * *]

(d) "prescribed" means prescribed by rules made under this Ordinance;

(e) "Register" means a Register of Notaries to be maintained under section 4⁸; and]

¹Substituted for the word "Pakistan" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 2.

²Substituted for the word "Pakistan" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 2.

³Substituted for the word "Pakistan" by the Act *ibid*.

⁴Substituted for the words "It shall come into force on such date as the 1[Provincial Government] may, be notification in the official Gazette, appoint" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 3(b).

⁵Added by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 4(a).

⁶Substituted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), w.e.f. 8.7.1981 s.3 and 2nd Schedule II.

⁷Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and 2nd Schedule II.

⁹[(ea) "Secretary" means Secretary to Government, Home Department.]

3. Power to appoint notaries.— The ¹⁰[* * *] ¹¹[Secretary or any other officer authorized by him in this behalf], for the whole or any part of the Province, may appoint as notaries any legal practitioners or other persons who possess such qualifications as may be prescribed.

4. Registers.— (1) The ¹²[* * *] ¹³[Secretary or any other officer authorized by him in this behalf] shall maintain, in such form as may be prescribed, a Register of the notaries appointed by ¹⁴[him] and entitled to practise as such under this Ordinance.

(2) Every such Register shall include the following particulars about the notary whose name is entered therein, namely:—

- (a) his full name, date of birth, residential and professional address;
- (b) the date on which his name is entered in the Register;
- (c) his qualification; and
- (d) any other particulars which may be prescribed.

5. Entry of names in the Register and issue or renewal of certificates of practice.— (1) Every notary who intends to practise as such shall, on payment to the ¹⁵[Provincial Government] of the prescribed fee, if any, be entitled—

- (a) to have his name entered in the Register maintained ¹⁶[* * *] under section 4, and
- (b) to a certificate authorizing him to practise for a period of three years from the date on which the certificate is issued to him.

¹⁷[(2) Every such notary who wishes to continue to practise after the expiry of the period of three years referred to in clause (b) of sub-section (1) shall, at such time before the expiry of the said period as may be prescribed, submit to the

⁸Substituted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 4(b).

⁹Added by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 4(b).

¹⁰Omitted the words "Central Government, for the whole or any part of Pakistan and the" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

¹¹Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 5.

¹²Omitted the words "Central Government and the" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

¹³Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 6(a).

¹⁴Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3635, s. 6(b).

¹⁵Substituted for "Government appointing him" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

¹⁶Omitted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 7(a).

¹⁷Substituted by the Notaries (Amendment) Ordinance, 1984 (LI of 1984), w.e.f 29.10.1984 s.2.

¹⁸[Secretary or any other officer authorized by him in this behalf] an application for renewal of his certificate of practice accompanied by the prescribed fee.

(3) On receipt of an application under sub-section (2) from a notary, the ¹⁹[Secretary or any other officer authorized by him in this behalf] may, if, after such inquiry as it may deem fit, it is satisfied that the conduct of the notary during the preceding three years has been unobjectionable, renew the certificate of practice for a period of three years ²⁰[subject to satisfactory performance evaluation in the manner as may be prescribed].

²¹[* * * * *]

6. Annual publication of lists of notaries.— The ²²[* * *] ²³[Secretary or any other officer authorized by him in this behalf] shall, not later than the end of January each year, publish in the Official Gazette a list of notaries appointed by ²⁴[him] and in practice at the beginning of that year together with such details pertaining to them as may be prescribed.

7. Seal of notaries.— Every notary shall have and use, as occasion may arise, a seal of such form and design as may be prescribed.

8. Functions of notaries.— (1) A notary may do all or any of the following acts by virtue of his office, namely:—

- (a) verify, authenticate, certify or attest the execution of any instrument;
- (b) present any promissory note, hundi or bill of exchange for acceptance or payment or demand better security;
- (c) note or protest the dishonour by non-acceptance or non-payment of any promissory note, hundi or bill of exchange or protest for better security or prepare acts of honour under the Negotiable Instruments Act, 1881 (XXVI of 1881), or serve notice of such note or protest;
- (d) note and draw up ship's protest, boat's protest or protest relating to demurrage and other commercial matters;
- (e) administer oath to, or take affidavit from, any person;
- (f) prepare bottomry and respondentia bonds, charter parties and other mercantile documents;

¹⁸Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 7(b).

¹⁹Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 7(c)(i).

²⁰Added by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 7(c)(ii).

²¹Omitted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 7(d).

²²Omitted the words "Central Government and every" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

²³Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 8(a).

²⁴Substituted for the words "that Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 8(b).

- (g) prepare, attest or authenticate any instrument intended to take effect in any country or place outside Pakistan in such form and language as may conform to the law of the place where such deed is intended to operate;
- (h) translate, and verify the translation of, any document from one language into another;
- (i) any other act which may be prescribed.

(2) No act specified in sub-section (1) shall be deemed to be a notarial act except when it is done by a notary under his signature and Official seal.

9. Bar of practice without certificate.—²⁵[*] Subject to the provisions of this section, no person shall practise as a notary or do any notarial act under the official seal of a notary unless he holds a certificate of practice in force issued to him under section 5:

Provided that nothing in this sub-section shall apply to the presentation of any promissory note, hundi or bill of exchange for acceptance or payment by the clerk of a notary acting on behalf of such notary.

²⁶[(2) * * * * *]

10. Removal of names from Register.— The ²⁷[²⁸ [Secretary or any other officer authorized by him in this behalf]] may, by order, remove from the Register maintained by him under section 4 the name of the notary if he—

- (a) makes a request to that effect; or
- (b) has not paid any prescribed fee required to be paid by him; or
- (c) is an undischarged insolvent; or
- (d) has been found, upon inquiry in the prescribed manner, to be guilty of such professional or other misconduct as, in the opinion of the ²⁹[Secretary or any other officer authorized by him in this behalf], renders him unfit to practise as a notary.

11. Construction of references to notaries public in other laws.— Subject to the provisions of section 16, any reference to a notary public in any other law shall be construed as a reference to a notary entitled to practise under this Ordinance.

12. Penalty for falsely representing to be a notary, etc.— Any person who—

- (a) falsely represents that he is a notary without being appointed as such, or

²⁵Omitted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 9.

²⁶Omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (XXVII of 1981), s.3 and 2nd Schedule II.

²⁷Substituted for "Government appointing any notary" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

²⁸Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 10(a).

²⁹Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 10(b).

- (b) practises as a notary or does any notarial act in contravention of section 9, shall be punishable with imprisonment for a term which may extend to three months, or with fine, ³⁰[which may extend up to five hundred thousand rupees but not less than one hundred thousand rupees] or with both.

13. Cognizance of offences.— (1) No court shall take cognizance of any offence committed by a notary in the exercise or purported exercise of his functions under this Ordinance save upon complaint in writing made by an officer authorized by the ³¹[* * *] ³²[Secretary] by general or special order in this behalf.

(2) No magistrate other than a magistrate of the first class shall try an offence punishable under this Ordinance.

³³[* * * * *]

15. Power to make rules.— (1) The ³⁴[Provincial Government] may, by notification in the official Gazette, make rules to carry out the purposes of this Ordinance.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:—

- (a) the qualifications of a notary, the form and manner in which applications for appointment as a notary may be made and the disposal of such applications;
- (b) the certificates, testimonials or proofs as to character, integrity, ability and competence which any person applying for appointment as a notary may be required to furnish;
- (c) the fees payable for appointment as a notary and for the issue and renewal of a certificate of practice, and exemption, whether wholly or in part, from such fees in specified classes of cases;
- (d) the fees payable to a notary for doing any notarial act;
- (e) the form of Registers and the particulars to be entered therein;
- (f) the form and design of the seal of a notary;
- (g) the manner in which inquiries into allegations or professional or other misconduct of notaries may be made;
- (h) the acts which a notary may do in addition to those specified in section 8 and the manner in which a notary may perform his functions.

³⁰Added by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 11.

³¹Omitted the words "Central Government or a" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

³²Substituted for the words "Provincial Government" by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 12.

³³Omitted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 13.

³⁴Substituted for "Central Government" by the Central Adaptation of Laws Order, 1964, (P.O. No. I of 1964) w.e.f. 28.5.1964, Article.2 and Schedule.

16. Saving of Act XXVI of 1881.— Nothing in this Ordinance affects the provisions of the Negotiable Instruments Act, 1881(XXVI of 1881), or any appointment made in pursuance of section 138 of that Act or the powers of any person so appointed.

³⁵⁻³⁶[[* * * * *]]

³⁵This Ordinance was promulgated by the Governor of West Pakistan on 1st December, 1969; published in the West Pakistan Gazette (Extraordinary), dated 06.12.1969, pages 2189-90; saved by Article 281 of the interim Constitution of Pakistan (1972); and, validated by Act LXIII of 1975.

³⁶Omitted by the Notaries (Amendment) Act 2025 (XX of 2025), published in the Punjab Gazette (Extraordinary), dated: 24 March 2025, p. 3636, s. 14.